

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Enoch Sowah	Team: Squad #7	CCRB Case #: 201901335	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 01/26/2019 9:00 PM	Location of Incident: East 102nd Street and Glenwood Road	Precinct: 69	18 Mo. SOL 7/26/2020	EO SOL 3/12/2021	
Date/Time CV Reported Wed, 02/13/2019 9:59 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 02/13/2019 9:59 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Zureno Wilson	06484	963810	069 PCT
2. POM Junaid Saeed	07200	963733	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Alexandra Grabar	12565	964533	069 PCT
2. LT Abdullraha Hussein	00000	944271	069 PCT
3. POM Ryan Courten	03855	948818	ESU CAN
4. SGT Mitchell Epstein	04662	954774	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Junaid Saeed	Abuse: Police Officer Junaid Saeed frisked § 87(2)(b)	
B.POM Junaid Saeed	Abuse: Police Officer Junaid Saeed searched § 87(2)(b)	
C.POM Junaid Saeed	Abuse: Police Officer Junaid Saeed frisked § 87(2)(b)	
D.POM Junaid Saeed	Abuse: Police Officer Junaid Saeed searched § 87(2)(b)	
E.POM Junaid Saeed	Abuse: Police Officer Junaid Saeed frisked an individual.	
F.POM Junaid Saeed	Abuse: Police Officer Junaid Saeed searched an individual.	
G.POM Junaid Saeed	Abuse: Police Officer Junaid Saeed searched the vehicle in which § 87(2)(b), § 87(2)(b), and an individual were occupants.	
H.POM Zureno Wilson	Abuse: Police Officer Zureno Wilson searched the vehicle in which § 87(2)(b), § 87(2)(b), and an individual were occupants.	

Case Summary

On February 13, 2019, § 87(2)(b) called the CCRB and filed this complaint on behalf of himself and his friends, § 87(2)(b) and an unidentified man.

On January 26, 2019, at approximately 9 p.m., Police Officers Junaid Saeed and Zureno Wilson from the 69th Precinct stopped § 87(2)(b), § 87(2)(b), and the unidentified man while they were seated in a minivan parked at the corner of East 102nd Street and Glenwood Road in Brooklyn. PO Saeed frisked and searched the three occupants in the minivan (**Allegations A through F: Abuse of Authority, § 87(2)(g)**), and together with PO Wilson searched the minivan (**Allegation G and H: Abuse of Authority, § 87(2)(g)**).

§ 87(2)(b) was transported to the 69th Precinct stationhouse for having an active warrant and an ICARD, but was ultimately released with a summons § 87(2)(b). No other arrest or summonses resulted from this incident.

PO Saeed and PO Wilson recorded this incident on their police body worn cameras (BR02-BR03).

Findings and Recommendations

Allegation (A): Abuse of Authority: Police Officer Junaid Saeed frisked § 87(2)(b)

Allegation (B): Abuse of Authority: Police Officer Junaid Saeed searched § 87(2)(b)

Allegation (C): Abuse of Authority: Police Officer Junaid Saeed frisked § 87(2)(b)

Allegation (D): Abuse of Authority: Police Officer Junaid Saeed searched § 87(2)(b)

Allegation (E): Abuse of Authority: Police Officer Junaid Saeed frisked § 87(2)(b)

Allegation (F): Abuse of Authority: Police Officer Junaid Saeed searched § 87(2)(b)

Allegation (G): Abuse of Authority: Police Officer Junaid Saeed searched the vehicle in which § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

Allegation (H): Abuse of Authority: Police Officer Zureno Wilson searched the vehicle in which § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

It is undisputed that PO Saeed and PO Wilson approached § 87(2)(b), § 87(2)(b), and the unidentified man while they were seated inside § 87(2)(b) minivan, which was legally parked at the corner of East 102nd Street and Glenwood Road in Brooklyn, nor is it disputed that PO Saeed frisked and searched the three men. It is also not disputed that PO Saeed and PO Wilson searched the minivan.

§ 87(2)(b), § 87(2)(g)

PO Saeed (BR04) justified the stop of the three men on the basis that they were seated inside a vehicle with a running engine, and that the officers upon approach smelled a strong odor of marijuana inside the minivan, thus prompting them to search the vehicle and the occupants. § 87(2)(b) (BR05) on the other hand denied that the minivan's engine was running, and denied that the minivan smelled of marijuana.

PO Saeed's BWC (BR02) shows him and PO Wilson approaching the driver's and front passenger's sides, respectively of a parked minivan. It is unclear from the video if the minivan's engine is running or shut off. § 87(2)(g)

At 21:02:43, PO Saeed tells § 87(2)(b) who is seated in the driver's seat, that the

minivan smells of marijuana. At 21:02:58, § 87(2)(b) who is seated in the front passenger's seat, tells PO Saeed that it possible the minivan smelled of marijuana, but said there was no marijuana inside the minivan. At 21:03:05. PO Saeed asks the occupants in the vehicle if they had smoked marijuana that day. § 87(2)(b) and an unidentified man, who is seated in the backseat, replies yes.

Between 21:10:30 and 21:11:54, PO Saeed orders § 87(2)(b), § 87(2)(b), and the unidentified man, respectively, out of the minivan, and frisks and searches all three men. The frisk and search yield negative results. Between 21:12:23 and 21:14:40, PO Saeed and PO Wilson enters and searches the entire minivan. The search of the minivan yields negative results

PO Wilson's BWC (BR03) captures the unidentified man at 21:15:30 confirming to PO Wilson that his jacket smells of marijuana.

The scent of marijuana in a vehicle is sufficient to provide officers with probable cause to search the vehicle and its occupants. People v. Chestnut, 43 A.D. 2d 260 (BR06).

§ 87(2)(b), § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one CCRB complaint and has been a named victim in three allegations (BR07):

- § 87(2)(b)
[REDACTED]

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR08).
- PO Saeed has been a member-of-service for two years and has been a subject to two CCRB complaints and six allegations, all of which are currently pending investigation.

§ 87(2)(g)
[REDACTED]

- PO Wilson has been a member-of-service for two years and has been a subject to one CCRB complaint and one allegation, which is currently pending investigation. [REDACTED]

§ 87(2)(g)
[REDACTED]

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- On July 11, 2019, a Notice of Claim inquiry was sent to the NYC Office of the Comptroller, and the inquiry is still pending. The results will be added to the case file upon receipt (BR09).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date